

Amendment No. 2 to SB0846

Lamar
Signature of Sponsor

AMEND Senate Bill No. 846*

House Bill No. 1268

by deleting subdivisions (30)(F)(i) and (ii) in the amendatory language of SECTION 2 and substituting:

(i) Effective September 1, 2026, there is created in the thirtieth judicial district one (1) additional criminal court to be designated as a violent criminal court and one (1) additional chancery court. The governor shall appoint a person to serve as judge of each court, and each person so appointed shall serve in that capacity until September 1, 2028, or until the person's successor is elected and qualified. At the August 2028 general election, the qualified voters of the thirtieth judicial district shall elect, in accordance with § 16-2-505, one (1) person to serve as judge of the violent criminal court created by this subdivision (30)(F)(i) and one (1) person to serve as chancellor of the chancery court created by this subdivision (30)(F)(i). Each person so elected at the August 2028 general election shall hold office until September 1, 2030, or until the person's successor is elected and qualified. Thereafter, the judge of the violent criminal court and chancellor shall be elected for a full eight-year term;

(ii) The presiding judge is directed to address caseload backlogs in the criminal courts by transferring cases involving criminal offenses set forth in § 40-35-501(aa), (bb), and (cc) to the violent criminal court for disposition; and